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Justice as fairness or retribution? Citizen reactions to domestic trials of wartime violence

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Abstract

How do domestic trials addressing wartime violence affect public opinion of government? The legitimation functions of national courts are well studied in liberal democracies, but less is known about the effects of trials that address abuses committed during large-scale conflict. This article investigates how the extent to which such trials achieve procedural justice (fairness in process) and retributive justice (allocation of punishment) affects perceptions of political legitimacy. I provide survey-experimental evidence from post-conflict El Salvador that leverages the repeal of a longstanding amnesty law. Although a trial in general improves citizen evaluations of state competence, fairness and punishment serve crucial – and distinct – legitimation functions. Procedural fairness significantly increased citizens' willingness to comply with state authorities, regardless of trial outcome. Yet, an *un*fair trial, when coupled with punishment, bolstered trust in politicians and the judiciary. This suggests a trade-off between public preferences for fairness and an 'iron fist' approach to violence. The findings reveal the limits of procedural justice in a post-conflict environment and furnish new insights on the multifaceted functions of human rights trials.

Keywords

courts, judicial politics, legitimacy, procedural justice, retributive justice, transitional justice

Courts convey important signals about government. Citizens can observe rulings to evaluate whether the government is beholden to special interests (Carrubba, 2009; Ginsburg & Moustafa, 2008) or sufficiently breaks from past regimes' patterns of abuse (Gonzáles-Ocantos, 2016; Minow, 2002). Yet, the effects of court activities on broader perceptions of political legitimacy are often ambiguous. In Latin America, for example, political legitimacy has remained elusive over two decades, despite the region's reputation as an active adopter of judicial responses to dictatorship-era crimes that helped galvanize a global 'justice cascade' (Lutz & Sikkink, 2001).[1] Why?

This article investigates how differences in the nature of domestic human rights trials – criminal prosecutions of human rights abusers conducted in a national court – affect citizen perceptions of political legitimacy. Existing studies on human rights trials typically only account for the incidence or absence of a trial. This approach has revealed crucial insights on how these trials affect state-level outcomes such as rights protections and armed conflict (e.g. Dancy & Wiebelhaus-Brahm, 2018; Kim & Sikkink, 2010; Olsen, Payne & Reiter, 2010). However, understanding their effects on citizen views of government requires a more fine-grained approach. Not all human rights trials secure convictions; nor are they always conducted fairly. This is particularly true of rule-of-law environments where leaders can influence courts for political gain (Pereira, 2005; Shen-Bayh, 2018), threatening to erode public confidence. Examining this vital yet underexplored variation in the nature of human rights trials, and not just their occurrence, can

[1] LAPOP survey data indicate that most Latin American countries score political legitimacy less than the scale's midpoint (Zechmeister & Lupu, 2019).

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advance knowledge of how and why they shape popular perceptions of government.

I investigate this question in a post-conflict setting, where the challenge of restoring political legitimacy is normatively and theoretically significant. My outcome of interest is citizen perceptions of political legitimacy – referring to the set of subjective beliefs that bolster individuals' willingness to obey the state, which includes perceived state competence, willingness to comply with state authorities, and trust in politicians and the justice system (Levi, Sacks & Tyler, 2009). Although political legitimacy is itself important, it can also pave the way for good governance (Levi & Sacks, 2009), whereas its absence could foster communal violence (Jung & Cohen, 2020).

I argue that while the occurrence of a human rights trial in general may strengthen political legitimacy, this impact depends on two dimensions of a trial with special salience to domestic audiences in a post-conflict state: the degree to which the trial achieves procedural justice (*fairness* in process) and retributive justice (correctness in the allocation of *punishment)*. Citizens' willingness to comply with the state requires the perception that the rules of engagement are fair. At the same time, the preponderance of insecurity in post-conflict settings requires citizens to rely on substantive outcomes of trials to assess the trustworthiness of specific state actors, making retributive justice a prime concern in citizen evaluations of politicians and the judiciary.

I provide evidence from a survey-in-the-field experiment fielded in 2018 in El Salvador, where the 1980–92 civil war was characterized by state-led atrocities against civilians. The vignette-based experiment leverages the 2016 repeal of an amnesty law that had been in place since shortly after the war and the subsequent reopening of proceedings related to a wartime massacre. The site thus provides an opportunity to identify the effects of a human rights trial where revisiting wartime legacies has been long hindered, reflecting a frequent feature of societies that saw large-scale state violence (Dancy & Wiebelhaus-Brahm, 2015; Lessa & Levey, 2015).

The results reveal a nuanced relationship between human rights trials and perceived political legitimacy. A trial in general significantly improved evaluations of state competence when compared to a baseline group that received no trial information, but its effects on other aspects of political legitimacy – compliance with the state, trust in politicians, and trust in the judiciary – were either moderate or negligible. Notably, fairness and punishment have disparate effects on different dimensions of political legitimacy. Procedural fairness significantly increased citizens' willingness to comply with state authorities, while punishment did not. Moreover, an *unfair* trial resulting in punishment significantly increased trust in politicians and the judiciary, even as trust in these actors trended negative in response to a fair, punitive trial. This suggests that in contexts like El Salvador where violence has persisted since the civil war, some citizens tolerate and even reward political actors for a *mano dura* ('iron fist') justice approach out of instrumental concerns about current security. I support this interpretation with additional causal mediation analysis and validation against existing public opinion and municipality-level data.

These findings contribute to several research streams. First, although an extensive body of research examines the institutional legitimacy of courts in liberal democracies, how court activities affect political legitimacy is less understood in post-conflict societies. The trade-off between citizen preferences for fairness and punishment complicates the conventional view of procedural fairness as a crucial source of legitimacy (e.g. Baird, 2001; Ramirez, 2008; Tyler, 2000). This helps to explain why human rights trials often struggle to win broad public support, with broader implications for the burgeoning literature on the role of moral judgements in citizen evaluations of government behavior outside the Global North (García-Ponce, Young & Zeitzoff, forthcoming; Gonzáles-Ocantos, 2016; Tsai, Trinh & Liu, 2022).

Second, the findings speak to a vibrant scholarship on courts in autocratic and weakly democratic regimes. Courts can safeguard human rights (Hillebrecht, 2014; Powell & Staton, 2009) but also project images of the state that reinforce authoritarian control (Magaloni, 2008; Shen-Bayh, 2018). By parsing a trial's procedural and retributive dimensions, this study demonstrates such 'double-edged' functions of courts (Moustafa, 2014) applied to the human rights domain. Lastly, bringing micro-foundations into the study of human rights trials offers novel research directions on how citizens evaluate state responses to legacies of conflict (Balcells, Palanza & Voytas, 2022; Hall et al., 2018; Lessa, 2021).

The legitimation functions of human rights trials

I begin by bridging insights from judicial politics, human rights, and social psychology research to generate hypotheses about the effects of human rights trials on political legitimacy. I use the term 'political legitimacy' to refer to multiple components that make up this

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concept: compliance with the state; perceived competence and ability; and trust in relevant state authorities.[2]

Courts as a source of political legitimacy

Courts play a vital role in burnishing images of political legitimacy. A functioning court demonstrates that the government deals with threats to the regime without resorting to open violence (Ginsburg & Moustafa, 2008) and provides a public signal of the government's commitment to human rights (Hillebrecht, 2014). This legitimacy-conferring function of courts has special relevance to post-war societies, where suspicion of state institutions runs deep (Hutchison & Johnson, 2011). Legal scholars have argued that human rights trials in these settings may bolster civic confidence in government as 'the law exposes and delegitimates that value system associated with past rule' (Teitel, 1997: 2078). Policy circles, too, increasingly embrace this view: National criminal accountability 'can restore confidence in the state and re-affirm the social contract, resulting in increased (and more legitimate) state authority' (United Nations, 2018: 3).

However, these accounts underappreciate the level of variation that exists *among* human rights trials. They can fail to secure convictions, even when there is overwhelming evidence against the alleged perpetrator. In Guatemala's landmark genocide trial against a former head of state, Efraín Ríos Montt, an unrealized conviction led to profound disillusionment among the public (Burt, 2016). Similarly, the 2002–03 war crimes trials against officers in the Indonesian Armed Forces resulted in the reversals of all but one of the convictions, laying bare the lack of political appetite for accountability (Cohen, 2006).

Moreover, human rights trials are not always conducted in fair and credible ways. In post-conflict states, weakened rule-of-law systems provide fertile ground for leaders to subvert or weaponize domestic justice efforts (Kitagawa & Bell, 2022; Loyle & Davenport, 2016). A parallel scholarship on courts under authoritarian regimes demonstrates how leaders can leverage judicial institutions to target political opponents (Pereira, 2005; Shen-Bayh, 2018), manipulate the law (Corrales, 2015; Magaloni, 2008), and attack judges and prosecutors (Helmke, 2010). Such autocratic tendencies potentially reduce a trial to a 'public spectacle' and undermine civic confidence (Osiel, 1997).

This research offers the important insight that courts' abilities to project images of political legitimacy can cut both ways: Trials could foster perceptions of a rights-respecting government, while under other circumstances may signal that the courts are pliant to the politically powerful, speaking to the 'double-edged' nature of their functions (Moustafa, 2014). However, these findings have remained disconnected from related literatures on post-conflict processes and on the political psychology of belief formation about courts (mostly in the US politics literature). In turn, the international relations scholarship on the effects of human rights prosecutions has primarily focused on state-level outcomes, particularly armed conflict and criminal violence (e.g. Dancy & Wiebelhaus-Brahm, 2018; Jo & Simmons, 2016; Trejo, Albarracín & Tiscornia, 2018), rather than public opinion about the state that launches such prosecutions in the first place. These trends have hindered the development of theory-building about how criminal accountability functions and shapes public opinion in post-conflict contexts.

In recent years, criticisms of 'sham trials' and political meddling have plagued important human rights litigation in post-conflict settings as diverse as Cameroon (Human Rights Watch, 2021), Nepal (Al Jazeera, 2016), and Sudan (Human Rights Watch, 2008). The impact of human rights trials on political legitimacy is far from clear cut. Unpacking this process requires a more fine-grained account of how and why the nature of a human rights trial affects public opinion.

Fairness and retribution in human rights trials

Human rights trials can differ along various dimensions, but two are especially relevant to domestic audiences in a post-conflict setting: the extent to which a trial is perceived (1) to be fair in process, or achieves procedural justice, and (2) to mete out morally appropriate punishment or achieves retributive justice. As Minow (1998: 126) notes in her canonical work on responses to mass atrocity, 'nothing puts the instruments of justice more at risk in a society struggling for political legitimacy than prosecuting widely known perpetrators of human rights violations and *failing to secure convictions* or *securing them unfairly*' (emphasis added). Although not a primary focus of her study, the observation suggests that citizens are acutely sensitive to the *quality* of trials, and that they judge this quality on fairness of process and the capacity to secure punishment.

A long line of social and political psychology research finds that when citizens perceive institutional procedures to

[2] Legitimating beliefs are in part based on perceptions of the state's ability to carry out its tasks, but also on individuals' trust in relevant authorities – such as politicians and the national justice system – that indirectly induces willingness to comply with the state, even when the government may lack in performance (Levi & Sacks, 2009).

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be fair, they are more likely to accept and obey state authorities, including courts and public officials (e.g. Baird, 2001; Lind & Tyler, 1988; Ramirez, 2008; Thibaut & Walker, 1975; Tyler, 1990; Walters & Bolger, 2019). While this scholarship centers on consolidated democracies, especially the USA, studies of states emerging from periods of widespread repression reach similar conclusions. For example, Peruvians' favorable opinion of government was associated with beliefs that the proceedings against Alberto Fujimori had been fair, regardless of their support for the court's specific ruling (Gonzáles-Ocantos, 2016); perceptions about procedural correctness predicted greater public support for lustration in post-communist Europe (Nalepa, 2012). In these accounts, legitimacy is grounded in the decisionmaking process, rather than its outcome.

Extending this logic to human rights trials addressing wartime violence, I expect that fairness of process will enhance citizens' willingness to comply with the state, regardless of a conviction. I specifically focus on one facet of procedural fairness: victims' voice, or the ability to have their own account heard through testifying in the proceedings (Folger, 1977). Fairness perceptions can be shaped by different aspects of a court, including the judges' perceived impartiality or the transparency of judicial proceedings (Ríos-Figueroa & Staton, 2012). However, individuals are especially likely to view an institutional process as fair when they believe that victims have been granted adequate voice and representation in its proceedings (Lind & Kanfer, 1990; MacCoun, 2005; Ramirez, 2008; Tyler, 2000). Victims' participation rights are recognized as a fundamental tenet of procedural fairness in human rights litigation specifically (Funk, 2015). A human rights trial that ensures the procedural right of victims' participation conveys a strong signal that previously silenced voices are heard on a level playing field, predicting citizens' greater willingness to comply with state authorities' decisions in the future, even if these individuals do not necessarily agree with the ruling.

A second key dimension of a human rights trial is its ability to achieve retributive justice, or the state's allocation of morally appropriate punishment (Hampton, 1992). A growing empirical scholarship recognizes the role of retributive justice concerns in citizen views of government. Research has linked subjective beliefs that the punishment fit the crime to greater perceptions of court legitimacy (Feather & Boeckmann, 2013) and, in trials of Nazis in postwar Germany, support for democracy (Capoccia & Pop-Eleches, 2020). In survey-experimental research on attitudes towards anticorruption policy in China, Tsai, Trinh & Liu (2022) show that citizens prefer leaders who are responsive to moral concerns about retributive justice. In these accounts, punishment brings citizen satisfaction by demonstrating the state's willingness to mete out just deserts.

Citizen demand for retributive justice can be substantial in a post-conflict environment, given that some groups harbor moral outrage over wartime violence (Mookherjee, 2015; Wood, 2003). Accordingly, in settings with widespread insecurity, individuals are more inclined to support or participate in retribution against perpetrators of violence (Jung & Cohen, 2020; Phillips, 2017), especially when the victims are perceived to be morally innocent (García-Ponce, Young & Zeitzoff, forthcoming). While these studies do not specifically address trials in post-conflict settings, they underscore demand for top-down punishment of wrongdoing as a critical factor in public opinion formation.

Moreover, courts in post-conflict settings arguably have yet to amass a stable 'reservoir of goodwill' enjoyed in consolidated democracies (Baird, 2001; Gibson, Caldeira & Baird, 1998). To the contrary, judicial independence often declines during conflict (Haggard & Tiede, 2014) and the judiciary itself may have deliberately protected elites from the law's reach (Bowen, 2013: 837–839). To formulate beliefs about the trustworthiness of the judiciary and political actors in the post-conflict environment, citizens must therefore rely on the substantive *outcomes* that courts deliver. More specifically, citizens should place a high premium on a particular outcome: punishment for wartime crime. I expect a trial that secures a conviction to increase trust in the justice system and in politicians, regardless of procedural fairness.

Table I summarizes the observable implications. Hypothesis 1 is on the general positive effect of a human

Table I. Hypotheses

Main trial effect	*H1*	A human rights trial leads to greater perceived political legitimacy compared to the absence of a trial.
Procedural justice	*H2a*	A fair trial leads to greater perceived political legitimacy than a trial lacking in fairness.
	H2b	Fairness increases citizen willingness to comply with the state, regardless of the trial's outcome.
Retributive justice	*H3a*	A trial resulting in punishment leads to greater perceived political legitimacy than one that does not.
	H3b	Punishment increases citizen trust in the judiciary and politicians, regardless of the trial's procedural fairness.

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rights trial on political legitimacy, a broad implication of existing studies of human rights prosecutions. Hypotheses 2–3 speak to differences in the nature of the trials' proceedings, with 2b and 3b on the specific comparative strengths of procedural and retributive justice.

Research design and data

I test the theoretical claims using a vignette-based survey experiment fielded in El Salvador in 2018. The survey-experimental approach is well suited to testing a trial's informational effects at the level of the individual.[3] Randomization mitigates common challenges to causal inference that arise from heterogeneity among individuals in learning about human rights litigation and other, potentially unobserved, attributes that drive reactions to courts.

El Salvador background

The 1980–92 civil war between the government and the leftist Frente Farabundo Martí para la Liberacíon Nacional (FMLN) insurgency claimed more than 75,000 lives in a nation of just 5 million. The right-wing Alianza Republicana Nacionalista (ARENA) controlled government for most of the civil war. The party's key founders were behind the worst violence. This included the infamous death squads and the December 1981 massacre at El Mozote, where the state army killed hundreds of civilians, often by decapitation. The United Nations-backed truth commission, Comisión de la Verdad para El Salvador (CVES), found the state responsible for approximately 85% of wartime human rights violations, whereas 5% was attributed to the FMLN (CVES, 1993).

By January 1992, when the final peace agreement was reached, ARENA had successfully transformed itself into a hegemonic party with a broad political base (Wood, 2000: 70–77). ARENA's political entrenchment defined the next two decades of impunity. The Supreme Court was populated with party loyalists, well into the post-conflict period (Popkin, 2000: 4–5). Combined with control over the legislature, ARENA was able to secure the hasty passage of a general amnesty law, in 1993, which prohibited criminal investigations and prosecutions of any wartime acts and arrested those already under way.[4] The FMLN came to power in 2009, but many of its elites, too, balked at revisiting the war. Such political inertia preserved the amnesty until July 2016, when the Supreme Court deemed it unconstitutional (Zablah, 2016). The repeal triggered the reopening of investigations into state agents' roles in wartime violence for the first time in over two decades.

The historical complicity of state actors, including the judiciary, makes El Salvador an important test case for comparing the effects of procedural and retributive justice on political legitimacy. The amnesty repeal also provides a valuable empirical opportunity to assess citizen reactions in a setting where formal reckoning with wartime legacies has been long denied – a common feature among post-conflict and post-authoritarian states, where de jure amnesties routinely shield the politically powerful over multiple administrations (Lessa & Levey, 2015; Roht-Arriaza, 2015).

Sample and treatment conditions

The sample is composed of 957 Salvadoran adults and representative of the two largest departments of the country, San Salvador and La Libertad. Participants were recruited using a multistage sampling procedure.[5] The 14 municipalities represented in the sample capture rich subnational variation in the number of wartime human rights violations, ranging from 17 in Antiguo Cuscatlán to 1,712 in San Salvador (Figure 1), which allows me to account for geographical and individual differences in war experiences.[6]

The survey was conducted face-to-face at individuals' households. The vignette-based experiment has a 2×2 design with an additional pure control group, totaling five groups.[7] All participants first heard a brief background to the civil war, including information about the El Mozote massacre (full text in Online appendix B). The pure control group received no additional information. Participants assigned to receive trial information – the trial treated group – next heard a prompt on a preliminary trial addressing the massacre, followed by the main vignette.

The vignettes vary at two levels: the trial's fairness and punishment. I follow the practice of previous survey studies on procedural fairness that emphasize 'voice' (or the lack thereof) to signal fairness (or unfairness) of the judicial process (Lind & Kanfer, 1990; MacCoun,

[3] A growing scholarship uses survey and survey-experimental techniques to study the public opinion effects of transitional justice but typically focuses on public support for international criminal justice (e.g. Chapman & Chaudoin, 2020; Voeten, 2013).

[4] Decreto No.486, Ley de amnistía general para la consolidacíon de la paz.

[5] See Online appendix A.

[6] Online appendix C reports other descriptive patterns in the sample.

[7] The design blocked on gender, with a 50:50 female–male ratio in each treatment arm.

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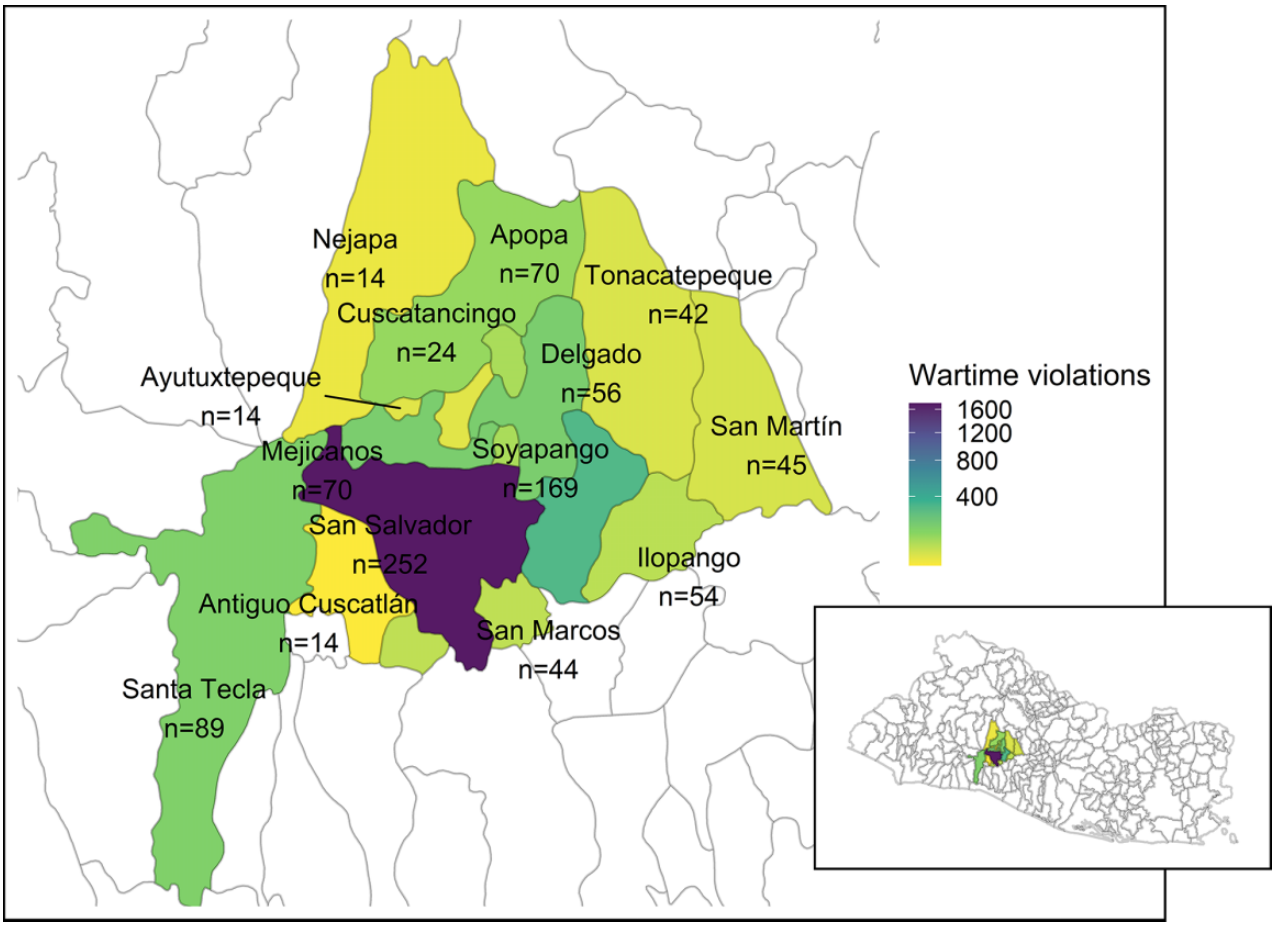

Figure 1. Municipalities represented in the sample by level of wartime human rights violations documented in CVES (1993)

2005; Ramirez, 2008; Tyler, 2000). For the retributive justice dimension, respondents heard whether the trial is expected to result in punishment or not. Table II shows the full vignettes for survey-takers assigned to receive trial information.

Two caveats are in order. First, the vignettes approximate an indirect process through which most ordinary citizens experience a trial: through local media, one of the few channels through which citizens learn about judicial affairs (Staton, 2010). Judicial proceedings are typically not open to broad public participation in El Salvador. However, news media widely publicize developments, with lawyers and civil society publicly commentating on the process in real time (e.g. Cornejo, 2017, Vásquez, 2017). To maximize the vignettes' realism, I follow practice in survey-experimental research on human rights (e.g. Nielson, Hyde & Kelley, 2019; McDonald, 2019) and use a real-world scenario regarding the preliminary trial for the El Mozote case – to date, the only wartime atrocity case to proceed since the amnesty was overturned.[8]

Second, the language used to invoke procedural fairness centers on victims' participatory rights (i.e. inclusion of victims' voice), rather than procedural rights granted to the prosecuted. Because procedural fairness is itself complex and voice just one of its components, future research could test alternative framing approaches that place greater emphasis, for example, on due process or other aspects of the proceedings.[9] There are nonetheless compelling theoretical and empirical reasons to use voice to convey fairness. Although there are many conceptual and operational definitions of procedural fairness, they share the feature of authorities providing subordinates the opportunity to relate their own accounts (Nagin & Telep, 2020: 762). There is ample

[8] Preliminary proceedings against 20 military officers began in March 2017 but were still in the pre-trial stage in 2018, when the survey was fielded. Because the vignettes involved a real-world scenario, the debriefing provided respondents with the latest available information on the criminal investigation (see Online appendix B).
[9] I return to this issue in the Discussion.

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Table II. Vignettes for the trial treated group.
Respondents in this group heard the civil war background (Online appendix B), followed by the prompt and trial vignette (punishment and fairness manipulations in italics). Pure control group respondents heard the civil war background but did not receive trial information.

PROMPT: One of the criminal investigations that has opened since the repeal concerns the El Mozote massacre. The preliminary trial has been going on over the past year. The defendants include former high-level officials.

	Punished	**Unpunished**
Fair	Some people say that the court *will punish* the accused. Moreover, the trial is expected to be *fair because all voices of the victims will be heard* in the process.	Some people say that the court *will not punish* the accused. However, the trial is expected to be *fair because all voices of the victims will be heard* in the process.
Unfair	Some people say that the court *will punish* the accused. However, the trial is expected to be *unfair because not all of the voices of the victims will be heard* in the process.	Some people say that the court *will not punish* the accused. Moreover, the trial is expected to be *unfair because not all of the voices of the victims will be heard* in the process.

empirical evidence that the opportunity for otherwise marginalized victims to present their case strengthens fairness perceptions (Walters & Bolger, 2019; Tyler, 2006).

This participatory right is also contextually relevant. Because domestic courts in the past prevented, or were complicit in the falsification of, witness testimonies about wartime atrocities (Doyle, 2020; CVES, 1993), the inclusion of victims' voice is a strong signal of procedural fairness for the Salvadoran audience. More generally, in human rights cases that involve state agents, it is the alleged perpetrator that wields greater political and narrative power than the victim (Meyers, 2016). As an additional safeguard, I validate the construct against multiple sources, including close readings of local media portrayals of court integrity, focus-group discussions with out-of-sample individuals, and informal debriefings with the survey respondents (see Online appendix E). In sum, this fairness treatment has strong foundations in existing scholarship and reflects how trial fairness is discussed in Salvadoran public discourse.[10]

Data

Following the vignette, respondents answered a series of questions that captured political legitimacy, my main outcome of interest. Past studies often collapse the concept of political legitimacy into a single measure,[11] with concepts such as 'support for the political system' or 'political trust' used to infer broader legitimacy. However, this approach conceptually misses the multifaceted nature of political legitimacy (for a critical discussion, see e.g. Gibson & Nelson, 2014). Empirically, using a measure of support or trust alone to capture legitimacy can lead to misleading inferences, as Driscoll & Nelson (2018) demonstrate in Latin America. I therefore disaggregate political legitimacy into four separate measures that capture its constitutive elements.

Recall that this multifaceted concept has three key elements: (1) compliance with the state, (2) perceived state competence or ability, and (3) trust in the relevant authorities. To measure compliance, the respondents were read a list of five statements about their willingness to comply with state authorities and asked to choose the one that best describes their own disposition. The *compliance* measure takes a value of 1 when the respondent chooses the unconditional voluntary compliance statement – 'If my government (like a court or the police) tells me to do something, I will do it, even if I disagree with what they ask me to do' – and 0 otherwise.[12]

To capture beliefs about *state ability*, or competence, respondents scored the extent to which the state is capable of effectively delivering justice on a 1–6 ineffective–effective scale. I use a relatively narrow conception of state ability, rather than asking more generally how competent government is, since citizen beliefs about government tend to be policy domain-specific

[10] I consider how some respondents may have realized that, even in a fair trial, Salvadoran courts do not procedurally require that literally 'all victims' voices' be heard; others may have interpreted this language as indicating a show trial that introduced superfluous testimonies regardless of their relevance to the crime. Online appendix I reports a robustness check considering the effects of the fairness treatment by educational attainment, which makes either case unlikely.

[11] See e.g. Bartels & Johnston (2013); Carreras (2013); Hutchison & Johnson (2011); Salzman & Ramsey (2013).

[12] See Online appendix D for other available options. The order of the statements was randomized.

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(Hardin, 1998). Respondents also scored the trustworthiness of politicians (*trust in politicians*), and the national justice system (*trust in judiciary*), each on a 1–6 distrust–trust scale.[13]

For ease of interpretation, the analyses that follow convert the four legitimacy variables to percentages and report differences in means between the relevant treatment and baseline groups.[14] The full survey data also contain various pre-treatment variables, including measures of exposure to wartime violence, ethnic identification, political affiliation, religion, and other sociodemographic information (see Online appendix C for detail and summary statistics). Because balance was broadly achieved on covariates across treatment assignment (Online appendix C, Figure C3), the main analyses that follow report differences in means. The results are robust to various regression modeling specifications that include pre-treatment covariates (Online appendices G, H, J).

Results

I first compare the four legitimacy outcomes across the group of subjects assigned to hear any information about a trial and the pure control group that did not. Figure 2 reports the differences in means in each political legitimacy dimension between this trial information-treated group and baseline. Exposure to trial information bolstered some, but not all, dimensions of political legitimacy. The largest improvements were in the state's perceived ability to deliver justice (8.45 percentage point difference) and trust in politicians (4.97), both significant at the 95% level. I find no significant effects on either compliance or trust in the judiciary.

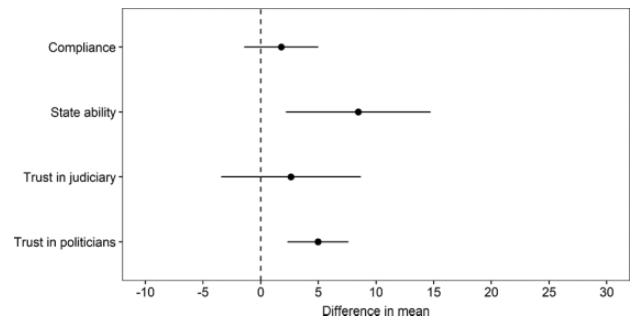

Figure 2. Main trial effect on political legitimacy

Baseline is no trial information. 95% confidence intervals shown.

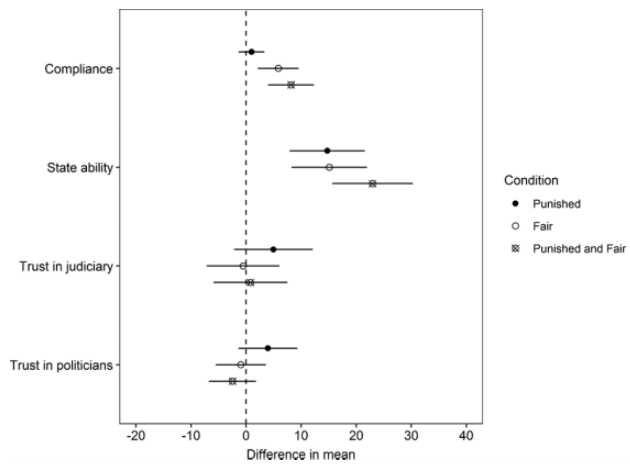

Figure 3. Effects of punishment and fairness within the trial group on political legitimacy

Baseline is the absence of punishment and fairness. 95% confidence intervals shown.

Thus far, support for Hypothesis 1 is mixed. Although exposure to a trial can substantially improve beliefs regarding state ability, its impact on other aspects of political legitimacy is limited. But what about the specific nature of the trial? Turning to the roles of punishment and fairness, Figure 3 reports comparisons within the trial treated group. The plot shows the effects of punishment, fairness, and their combination on legitimacy outcomes. In each case, the estimate is the difference in mean relative to the absence of punishment and fairness as the baseline.

There are two notable patterns. First, punishment and fairness individually had a significant, positive effect on perceived state ability. The magnitude is substantial: each treatment improved this perception by approximately 15 percentage points relative to the baseline, far outweighing the general trial effect. The combined effect

[13] There is a rich debate in judicial politics scholarship on whether survey questions using single terms such as 'trust' or 'confidence' in courts capture the court's long-run institutional legitimacy as a whole ('diffuse support') or a respondent's support for the court's shorter-term performance ('specific support') (see e.g. Gibson, Caldeira & Spence, 2003). Because my purpose is to make comparisons across different components of political legitimacy – i.e. are the effects of procedural and retributive justice similar for (1) compliance, (2) state ability, (3) trust in relevant authorities? – I refrain from further disaggregating trust in courts; this choice also retains equivalence across the politician and judiciary categories of trust. Some scholars find that a court's perceived legitimacy can shift rapidly in response to key rulings (Christenson & Glick, 2015), suggesting that diffuse and specific support may track one another more closely than previously thought, but I leave for future work a more careful examination of the conceptual and empirical links between them.

[14] For the 1–6 scale measures, values of 4–6 are recoded as 100, and 1–3 recoded as 0; a value of 1 for *compliance* is recoded as 100 and 0 otherwise.

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of punishment and fairness was slightly larger, at 23 percentage points (though not meaningfully different from the individual effects). The roughly similar magnitudes of these effects suggest that punishment and fairness could serve as substitutes with respect to perceived state ability.

Second, punishment and fairness nonetheless had nuanced effects on the remaining three measures. Whereas a fair trial significantly increased willingness to comply with state authorities by nearly 6 percentage points, the effect of punishment on its own was negligible and had no additional positive effect when the trial was fair. The pattern is reversed for the trust measures: Punishment increased trust in the justice system by 13.4 points, and trust in politicians by 6.3, though statistical significance falls to the 0.1 level. Fairness had virtually no effect on either trust measure, even trending slightly negative for politicians.

The results suggest that procedural justice and retributive justice in a human rights trial serve crucial, yet distinct, legitimation functions. Given the substantially large effects on the state ability measure – and with punishment improving three out of the four legitimacy outcomes (at a significance level of 0.1 or better) and fairness significantly improving two – the results are broadly consistent with Hypotheses 2a and 3a. Support is strongest for Hypothesis 2b on the efficacy of fairness in strengthening compliance, regardless of trial outcome. Punishment was instead more effective at increasing trust in politicians and the judiciary, lending moderate support to Hypothesis 3b. However, this impact appears to depend on the absence of fairness (which the hypothesis did not specifically predict). I examine a potential underlying mechanism for this result next.

Further analysis: Embracing the 'iron fist'?

A noteworthy result is that an *unfair* trial coupled with punishment can *increase* citizens' trust in political actors even though a fair trial that also achieves punishment does not. Why might this be? One possible interpretation is that citizens reward political actors more for a *mano dura* ('iron fist') approach that punishes agents of violence at the expense of procedural fairness, compared to other types of judicial proceedings. I support this interpretation – the 'mano dura trade-off' – with additional tests using the experimental data and support from existing public opinion and municipality-level data.

First, Figure 4 reports a more direct test of the mano dura trade-off. I split the trial information-treated sample data into two groups: respondents who received

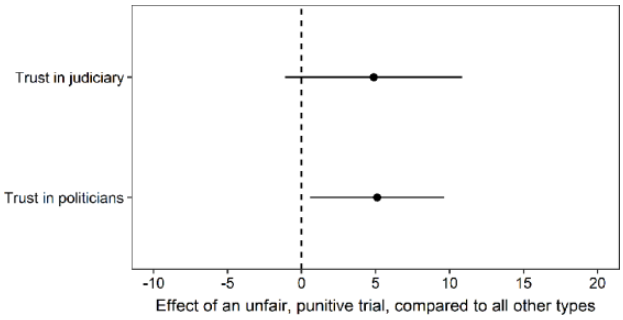

Figure 4. The mano dura trade-off

Plot shows effects of the 'punished but unfair' condition on trust, relative to all other pairs of punishment-fairness conditions as the baseline; 95% confidence intervals shown.

information about a trial achieving punishment but lacking fairness, and respondents who received any other pair of the punishment and fairness conditions. The figure plots differences in means in the trust measures between these two groups. The specific combination of punishment and *unfairness* is associated with a significant increase in trust, particularly in politicians; the judiciary trust effect is significant at the 0.1 level.

Second, I analyze the underlying mechanism the mano dura trade-off implies: Respondents may be more willing to trust politicians because they believe an expedient retributive approach will enhance security. Using causal mediation analysis, I examine whether the effects of the trial treatment are mediated by beliefs that security is improved.[15] Figure 5 features the results. The mediator is a question which asked respondents to score how much security exists in their community, on a 1–6 scale. Security beliefs indeed mediate the effect of a trial on the two trust measures of interest. The same analysis produced null effects when using an alternative mediator of beliefs about equality before the law in Salvadoran society (Online appendix K). Given the modest size of the average causal mediation effects, other mediators not tested in this study are likely relevant. Nonetheless, the results are suggestive that citizens reward politicians in part due to instrumental concerns; that is, they expect an iron fist approach to improve current security.

Citizens do not evaluate human rights trials in a vacuum. The results suggest that a retributive approach to past wartime violence could signal politicians' commitment to addressing other forms of contemporary violence.

[15] I use procedures established by Imai et al. (2011) and the *mediation* R package (Tingley et al., 2014).

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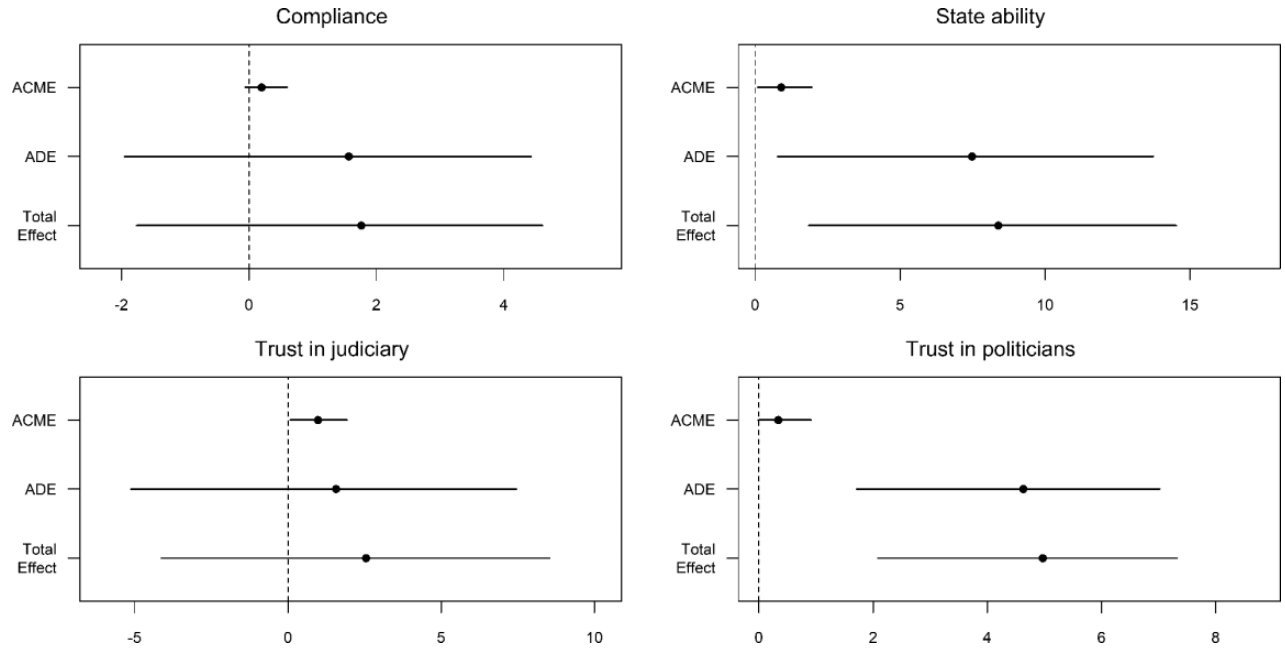

Figure 5. Mediation analysis results

ACME is the average causal mediation effect of belief in improved security, and ADE is the average direct effect. The x-axis is the percentage point difference from the baseline of no trial information.

Qualitative accounts and national public opinion data are consistent with this interpretation. The Salvadoran public has often supported 'extraordinary security measures' – characterized by the state's use of discretionary crimes, weakened due process, and militarized policing – under ARENA and FMLN administrations alike (Holland, 2013; Benitez, 2018). A 2016 national public opinion poll found that 42.1% of Salvadorans believed that extraordinary measures would help to reduce violence, with 54% approving of state authorities 'operat[ing] on the margins of the law' to achieve this goal (Instituto Universitario de Opinión Pública, 2017). While the 'unfairness' of extraordinary security measures involves infringements on the rights of alleged perpetrators of violence, rather than its victims, these data align with how the survey respondents reacted favorably to a punitive but unfair trial due to its expected security benefits. It also suggests that the mano dura trade-off is not necessarily specific to trials addressing wartime crimes, but a more general mechanism underlying citizen assessments of retributive government policies.[16]

In a supplementary analysis, I show that the mano dura trade-off was more pronounced among respondents in a municipality where the government had previously implemented extraordinary security measures, compared to other municipalities (Online appendix H); violent crime rates in general do not explain this pattern. Though this evidence is tentative, previous exposure to government's retributive gestures potentially magnifies the trade-off in preferences for punishment versus fairness.

Discussion

The evidence overall lends support to the key theoretical claim: Citizen reactions to a human rights trial depend on the specific *nature* of the trial. While exposure to trial information in general improves evaluations of state competence, procedural and retributive justice amplify this effect. Further, citizens' willingness to comply with the state is predominantly based on the trial's fairness, not outcome. This result aligns with prior work on the primacy of procedural justice concerns in public opinion about institutional legitimacy. Yet, on closer inspection, the role of procedural justice is more nuanced. An expected conviction was associated with greater trust in political actors, contingent on the trial being unfair, suggesting a public preference for hardliner approaches to wartime violence. The findings are robust to a battery of

[16] For example, survey experiments in Iraq, India, Israel, and Argentina have found that individuals are more likely to approve of their governments curtailing liberties if they view such abuses as necessary to keep order (Lupu & Wallace, 2019; Mironova & Whitt, 2021).

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additional tests, including placebo tests using trust in schools and generalized interpersonal trust as outcomes (Online appendix F) and controlling for various pre-treatment covariates (Online appendices G-J).[17]

While my data from a single country have limitations, the study opens new avenues for research on public reactions to human rights trials. El Salvador retained an amnesty for many years before criminal accountability became possible. This is not an uncommon experience among states that saw large-scale violence (Dancy & Wiebelhaus-Brahm, 2015; Lessa & Levey, 2015), where amnesties are often upheld by concerns (real or constructed) about the destabilizing effects of accountability. Future research might therefore investigate whether a prolonged period of government inaction on conflict-related violence moderates the impact of a human rights trial on political legitimacy. Existing accounts pull in different directions. For example, in Guatemala, where trials addressing decades-old wartime acts have only recently gained momentum, anecdotal accounts suggest that these trials are inspiring civic confidence precisely because justice had long been out of reach (Amnesty International, 2017). In contrast, some studies suggest that public demand for accountability is strongest in the immediate aftermath of conflict (Elster, 2004), implying that citizen satisfaction gained from prosecutions would weaken over time. Although my theory is agnostic on this question, this study lays the groundwork for adjudicating such competing accounts regarding the timing of human rights trials.

The mano dura analysis revealed that citizens trusted politicians more in response to a punitive (unfair) trial based on expected improvements in security. This instrumental mechanism may also be linked to El Salvador's history of amnesty, which arguably allowed criminal violence to persist after the war (Thale & Beltrán, 2013). Although the Salvadoran public is not especially punitive in its preference for harsh criminal punishment compared to its regional neighbors,[18] the findings highlight a need to further unpack how perceptions of ongoing insecurity shape citizen reactions to trials addressing past wartime violence, and vice versa.

Fairness and punishment effects may also be sensitive to differences in the nature of political violence, which studies link to public preferences about transitional justice policy (Aguilar, Balcells & Cebolla-Boado, 2011; Hall et al., 2018). For example, the perceived moral innocence of victims might amplify citizens' favorable views of the state's retributive approach (García-Ponce, Young & Zeitzoff, forthcoming). While this research focused on victims' participatory rights to convey trial fairness, future studies in contexts beyond El Salvador could deploy alternative framing approaches that prime different dimensions of fairness in process (Nagin & Telep, 2020). In doing so, scholars should consider the appropriateness of the frame in light of local public discourse about court integrity, historical patterns of court behavior, and the target of the criminal proceedings. For instance, a due process framing may be more suitable in a study of trials used to deliberately target human rights defenders or political opposition.[19]

Lastly, procedural and retributive justice dimensions of a trial may be correlated with citizen concerns about restorative justice, which my survey experiment does not explicitly test. Where criminal accountability falls short, symbolic gestures (e.g. apologies, truth commissions, educational campaigns) or compensation (e.g. reparations) may provide a sense of restorative justice (Balcells, Palanza & Voytas, 2022; David & Choi, 2009; Kitagawa & Chu, 2021; Quinn, 2021) and thereby enhance political legitimacy. Future research could compare the salience of retributive and procedural justice against restorative or distributive dimensions for a broader range of policy domains, as some scholars have begun to do in areas such as government anticorruption initiatives (Tsai, Trinh & Liu, 2022).

Conclusion

This article compared how differences in the nature of human rights trials affect citizen perceptions of political legitimacy in a post-conflict setting. Using original survey-experimental evidence from El Salvador, I demonstrated that exposure to information about a trial on a wartime massacre improved citizen evaluations of state competence, but this effect was greatest when the trial was fair and expected to result in punishment. Further, whereas fairness was a necessary condition for

[17] Exposure to wartime violence generally predicts lower levels of perceived legitimacy. I find no significant differences in the magnitude of the effects across supporters of the FMLN (the former insurgent group and the ruling party at the time of the survey) and other political parties (Online appendix J). The patterns are also largely stable across those learning about the El Mozote hearings for the first time and those who had prior knowledge (Online appendix G).

[18] El Salvador ranks third from last in Latin America (Price et al., 2019).

[19] Further discussion in Online appendix E.

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increasing compliance with the state, respondents placed greater trust in politicians and the judiciary in response to punishment at the expense of fairness. These findings suggest that procedural justice and retributive justice can fulfill distinct, and sometimes countervailing, legitimation functions.

This study contributes to a maturing scholarship on human rights trials by demonstrating their effects on individuals' attitudes toward the state that initiates prosecutions in the first place. Differences in the nature, and not just occurrence, of human rights trials may help to explain why important human rights prosecutions struggle to achieve broad support for government, with potential downstream consequences for democratic consolidation and incentives to repress (Kim & Sikkink, 2010; Olsen, Payne & Reiter, 2010). This also has relevance to a growing literature on how moral concerns shape citizen evaluations of government behavior in authoritarian and weakly democratic regimes (García-Ponce, Young & Zeitzoff, forthcoming; Tsai, Trinh & Liu, 2022).

Indeed, the results suggest the limits of procedural justice where rule-of-law institutions have historically been used to serve, rather than check, political interests. Whereas past scholarship on public opinion of courts, mostly in the Global North, finds that procedural justice has wide-reaching and generally positive impacts on citizen views of government, the findings from El Salvador suggest a more nuanced role; it may even hinder trust in government under certain circumstances. The evidence calls for further clarifying of the micro-foundations of public reactions to courts in the understudied post-conflict environment.

The *nature* of human rights trials matters. While I focused on a trial addressing wartime violence as a point of departure, the theory has potential applications to trials addressing other forms of political violence (e.g. torture, forced disappearances, sexual violence) where victims' participatory rights and retributive justice are similarly at stake. Convictions are not always possible in trials addressing conflict and political violence, as key evidence may have been destroyed or concealed (Lessa, 2021). However, by including victims' voices in its proceedings, a court can nonetheless increase citizen compliance; a conviction is likely to improve more targeted beliefs about the trustworthiness of the court, at least in the short term. Such multiple sources of public legitimacy are essential to a court's abilities to survive political attacks (Helmke, 2010) and may eventually lead rights advocates to bring a broader range of human rights cases to domestic courts (Duffy, 2018). The findings thus point to opportunities for national courts where state violence is coming under public scrutiny.

Replication data

The dataset, codebook, and code for the empirical analysis in this article, along with the Online appendix, are available at https://www.prio.org/jpr/datasets/. All analyses were conducted using R.

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